

25TRCV00495 25TRCV00495

County: los-angeles

Division: Civil Law and Motion

Department: E

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Case Number: 25TRCV00495 Hearing Date: August 3, 2026 Dept: E

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. E

ARNO
KUIGOA,

Plaintiff,

Case No.:

25TRCV00495

vs.

[Tentative]
Denied

BONIFACE
TSOBNANG, PREMIER EAGLE

TRANSPORTATION

INC., JOSEPH STEPHANE ZAMBOU MONGU AND DOES

1-100,
Inclusive

Defendants.

Hearing

Date: August

3, 2026

Moving Parties: Defendant Joseph Stephanie Zambou
Mongu

Responding Party: Plaintiff Arno Kuigoa

HEARING: Motion to Vacate Default

The Court considered the moving,
opposition, and reply papers.

RULING

The Court denies the Motion to Vacate Default.

BACKGROUND

On

February 14, 2025, Plaintiff Arno Kuigoa filed the Complaint against Defendants Boniface Tsobang, Premier Eagle Transportation, and Joseph Stephanie Zambou Mongu alleging causes of action for fraud, conversion, unjust enrichment, alter ego liability, and punitive damages.

On July 23, 2025, the Court entered
the default of Defendant Joseph Stephanie Zambou Mongu.

On August 4, 2025, the Court entered
the default judgment.

On June 10, 2026, Defendant filed
the Motion to Vacate Default.

On June 29, 2026, Plaintiff filed
the Opposition.

On July 27, 2026, Defendant filed
the Reply.

LEGAL STANDARD

The court may, upon any terms as may be just,
relieve a party or his or her legal representative from a judgment, dismissal,
order, or other proceeding taken against him or her through his or her mistake,
inadvertence, surprise, or excusable neglect... [The application] shall be made
within a reasonable time, in no case exceeding six months, after the judgment,
dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473 subd. (b).)

;

Although a trial court has the discretion to
vacate the entry of a default or subsequent judgment, this discretion may be
exercised only after the party seeking relief has shown that there is a proper
ground for relief and that the party has raised that ground in a procedurally
proper manner, within any applicable time limits.” (Cruz
v. Fagor America, Inc. (2007) 146 Cal.App.4th 488, 495.) “The defendant
must ... demonstrate a satisfactory excuse for not responding to the original
action in a timely manner.” (Id. at 504.) Moving parties have the
initial burden to prove excusable neglect by a preponderance of competent
evidence. (Kendall v. Barker (1988) 197 Cal.App.3d 619, 624.)

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Code Civ. Proc., § 473 subd. (d) provides in
relevant part that “[t]he court may, upon motion of the injured party... set aside
any void judgment or order.” (Code Civ. Proc., § 473 subd. (d).)

Code Civ. Proc., section 473.5 permits the
Court to set aside a default and default judgment when the service of a summons
has not resulted in actual notice to a party in time to defend the action. Code

Civ. Proc., section 473.5 requires the motion to be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. (Code Civ. Proc., § 473.5.) The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of the following:

1)

1) two years after entry of a default judgment against him or her; or

2) 180 days after service on him or her of a written notice that the default or default judgment has been entered.

(Code Civ. Proc., § 473.5.)

DISCUSSION

Defendant requests that the Court vacate his default and the default judgment.

Defendant argues that his failure to respond to the summons and complaint resulted from the excusable neglect, surprise, mistake, and inadvertence of an unsophisticated lay person with no legal training or experience. He states that although Plaintiff warned him in February 2025 about an intended suit against his father, Boniface Tsobnang, and Premier Eagle Transportation, Inc., Plaintiff never told him he would be sued personally. Defendant maintains that he never signed a lease with Plaintiff, never lived at the premises, had no knowledge of any funds Mr. Tsobnang purportedly received, and was unaware of Premier Eagle Transportation, Inc. or that he was listed as its Chief Executive Officer. When he received court documents in April 2025, he relied on his father's assurances that Mr. Tsobnang would appear on his behalf and that the matter did not concern him.

Defendant explains that he received no further notice of the suit after April 2025 when he moved out of his residence, and that he first learned of the default and default judgment in May 2026 when he was served with a subpoena for a judgment debtor examination, at which point he promptly retained counsel. He argues that his

failure to respond was not the product of avoidance of service or inexcusable neglect but rather the excusable neglect, surprise, mistake, and inadvertence of an individual newly introduced to the legal system, and that the case should be decided on its merits. Defendant therefore asks the Court to exercise its wide discretion to grant relief, noting that the statute is a remedial measure to be liberally construed and that any doubt should be resolved in favor of a hearing on the merits

In opposition, Plaintiff

argues that statutory relief is time-barred because default was entered on July 23, 2025 and default judgment on July 31, 2025, yet Defendant did not move until June 2026, well beyond the six-month outer limit, and Plaintiff adds that the mandatory attorney-fault provision does not apply because Defendant had no attorney and submits no affidavit of fault. (Code Civ. Proc., § 473, subd. (b).) Plaintiff further contends that section 473.5 fails because Defendant admits receiving court documents from a Court Marshal and then relied on Boniface to handle the matter, which establishes actual notice in time to defend, and Plaintiff emphasizes that Defendant still did nothing for the more than three months before default. (Code Civ. Proc., § 473.5.)

473(b) relief

"The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473 subd. (b).)

Here, the Motion to Vacate Default was not filed until nearly a year after the filing of the default judgment. Thus, Defendant's request under section 473(b) must be denied as untimely.

473.5 relief

Code Civ. Proc., section 473.5 permits the

Court to set aside a default and default judgment when the service of a summons has not resulted in actual notice to a party in time to defend the action. Code Civ. Proc., section 473.5 requires the motion to be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. (Code Civ. Proc., § 473.5.)

Here, Defendant has affirmed that he received the summons and complaint on April 9, 2025. Thus, 473.5 relief is not available as Defendant had actual knowledge of the lawsuit.

Equitable Relief

“When a default judgment has been obtained, equitable relief may be given only in exceptional circumstances.” (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 981.) To set aside a judgment based upon extrinsic mistake one must satisfy three elements. First, the defaulted party must demonstrate that it has a meritorious case. Second, the party seeking to set aside the default must articulate a satisfactory excuse for not presenting a defense to the original action. Last, the moving party must demonstrate diligence in seeking to set aside the default once ... discovered.” (Id. at 982.)

In Stiles v. Wallis (1983) 147 Cal.App.3d 1143, the Court found that reliance on a third party who had not promised to defend the defendant was not grounds for equitable relief as it is unreasonable to rely on a third party to provide a defense without a firm promise. (Id. at 1148.) The Court also found that unfamiliarity with the law is not grounds for relief. (Id. at 1149.)

Here, Defendant states that Defendant Tsobnang told Defendant not to worry about the lawsuit and that he would go to Court on behalf of Defendant and “see what would happen.” (Mongu Decl. ¶ 15.) However, the Court finds that the Defendant's interactions with Defendant Tsobnang do not resemble a promise to defend Defendant, and thus, equitable relief is not available.

Therefore, the Court denies the Motion to Vacate Default.